IN THE NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH

C.P (CAA) No.66/BB/2017
U/sec.230-232 of the Companies Act, 2013

IN THE MATTER OF SCHEME OF AMALGAMATION
OF
CURAM SOFTWARE INTERNATIONAL PRIVATE LIMITED
AND
EMPTORIS TECHNOLOGIES INDIA PRIVATE LIMITED
AND
RATIONAL SOFTWARE CORPORATION (INDIA) PRIVATE LIMITED
WITH
STERLING COMMERCE SOLUTIONS INDIA PRIVATE LIMITED
AND
THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Delivered on: 10th April, 2018

Coram: Hon'ble Shri Ratakonda Murali, Member (Judicial)
Hon'ble Shri Ashok Kumar Mishra, Member (Technical)

Curam Software International Private Limited
#12, Subramanya Archade
Bannerghatta Road
Bengaluru- 560 029 - **1st Petitioner/Transferor Company No.1**

Rational Software Corporation (India) Private Limited,
#12, Subramanya Archade
Bannerghatta Road
Bengaluru- 560 029 - **2nd Petitioner/Transferor Company No.3**

Sterling Commerce Solutions India Private Limited
IBC, Knowledge Park
2nd and 3rd Floor, Tower D
Bannerghatta Road
Bengaluru- 560 029 - **3rd Petitioner/Transferee Company**

Parties Present :
1) Mr. Saji P.John, Sr. Advocate
SPJ Legal, Unit No.1002,
10th Floor, # 30, Prestige Meridian II M G Road,
Bengaluru 560 001
Advocate for the Petitioner Companies
2) Ms. Prema Hatti
Standing Counsel for ROC, Karnataka and RD
3) Mr.Pramod Kumar, Assistant
Representative for Official Liquidator

Per: **Hon'ble Shri Ratakonda Murali, Member (Judicial) - Author**

Heard on: 02.11.2017, 13.12.2017, 24.01.2018, 19.02.2018, 07.03.2018 and 23.03.2018

O R D E R

This Company Petition was filed jointly on behalf of the Petitioner Companies under Section 230 and 232 of the Companies Act, 2013, praying to order for sanctioning the Scheme of Amalgamation of 1st Petitioner/Transferor Company No. 1 and 2nd Petitioner/Transferor Company No. 3 with 3rd Petitioner/Transferee Company and shall be binding upon all the Shareholders and Creditors of the respective Petitioner Companies.

The averments made in the Company Petition are briefly described hereunder:

The Petitioner Companies seek an order for sanctioning the Scheme of Amalgamation whereunder **CURAM SOFTWARE INTERNATIONAL PRIVATE LIMITED** (1st Petitioner/Transferor Company No.1) and **RATIONAL SOFTWARE CORPORATION (INDIA) PRIVATE LIMITED** (2nd Petitioner/Transferor Company No.3) are proposed to be merged with **STERLING COMMERCE SOLUTIONS INDIA PRIVATE LIMITED** (3rd Petitioner/Transferee Company) and shall be binding upon all the Shareholders and Creditors of the Petitioner Companies. A Copy of the Scheme of Amalgamation is enclosed and marked as **Annexure A.**

The 1st Petitioner/Transferor Company No. 1 was incorporated on 1st March, 2005 as a Private Limited Company under the name and style of **CURAM SOFTWARE INTERNATIONAL PRIVATE LIMITED** in the State of Karnataka and obtained fresh Certificate of Incorporation vide bearing **CIN No.U72200KA2005PTC035721**.

The Registered Office of the 1st Petitioner/Transferor Company No. 1 is situated at #12, Subramanya Arcade, Bannerghatta Road, Bengaluru-560 029.

The authorised, issued, subscribed and paid-up share capital of the 1st Petitioner/Transferor Company No.1 as on 31st March, 2017 was as follows:

Authorized Capital	**Amount Rs.**
2,00,00,000 Equity Shares of Rs. 10/- each	20,00,00,000/-
Issued, Subscribed and Paid-up Capital	**Amount Rs.**
4,99,199 Equity Shares of Rs. 10/- each fully paid-up	49,91,990/-

The Main objects of the 1st Petitioner/Transferor Company No.1 as set out in its Memorandum of Association are, inter alia includes, hereunder:

i.) To carry on in India and/or elsewhere all or any of the business of information technology, software, software systems, software engineering, software development, software product development, systems architecture, software technology, software solutions, software services and software web based applications, of any nature or description and any other related or allied fields;

ii.) To render consultancy, assessment and advisory services in design and development of software systems, systems architecture, software technology, software solutions, software services and any other related or allied fields in India and/or elsewhere, etc.

The Copy of Certificate of Incorporation, Memorandum and Articles of Association of the 1st Petitioner/Transferor Company No.1 are enclosed and marked as **Annexure-B.**

As per the audited Balance Sheet of the 1st Petitioner/Transferor Company No.1 as on 31st March, 2017 the Assets and Liabilities are as follows:-

Liabilities	**Amount Rs.**(*in INR thousands*)	**Assets**	**Amount Rs.** (*in INR thousands*)
Share Capital	4,992	Financial Assets	1,92,101
Reserves and Surplus	2,03,104	Income Tax Assets	11,770

Financial Liabilities	276	Deferred Tax Asset	4,501
Total	**2,08,372**	**Total**	**2,08,372**

A copy of the said Audited Balance Sheet as on 31st March, 2017 of the 1st Petitioner/Transferor Company No.1 is enclosed and marked as **Annexure-C.**

EMPTORIS TECHNOLOGIES INDIA PRIVATE LIMITED, Transferor Company No.2 was incorporated on 3rd July, 2000, under the provisions of the Companies Act, 1956 under the name and style "CYBER-CI TECHNOLOGIES (INDIA) PRIVATE LIMITED" with the Registrar of Companies, Pune, Maharashtra. Subsequently, the name of the Transferor Company No.2 was changed to "Emptoris Technologies India Private Limited" vide fresh certificate of incorporation dated 4th April, 2005. The Transferor Company No.2, is engaged in providing IT/ITES services. An up-to-date copy of the Memorandum and Articles of Association of Emptoris Technologies India Private Limited, is enclosed and collectively marked as **Annexure-D.**

The Registered Office of Emptoris Technologies India Private Limited, is situated at Office No.101, 12st Level, Bldg. No.6, Commerzone, S No.144/145, Yerwada, Samrat Ashok Path, Pune, Maharashtra.

The authorised, issued, subscribed and paid-up share capital of Emptoris Technologies India Private Limited, Transferor Company No.2 as on 31st March, 2017 was as follows:

Authorized Capital	**Amount Rs.**
3,00,000 Equity Shares of Rs. 100/- each	3,00,00,000/-
Issued, Subscribed and Paid-up Capital	**Amount Rs.**
2,08,267 Equity Shares of Rs. 100/- each fully paid-up	2,08,26,700/-

There is no change in the authorised, issued, subscribed and paid-up share capital of Emptoris Technologies India Private Limited from 31st March, 2017 to the date of filing of this application.

The main objects of Emptoris Technologies India Private Limited as set out in its Memorandum of Association are, inter alia, as follows:

i.) To develop information systems, software and to perform content aggregation, and to create online catlogs for the domestic and export market, to conduct research and develop algorithms in the area of artificial intelligence and their applications to content management and license this intellectual property locally and internationally;

ii.) To run, administer, manage in India/abroad, software and electronics industry and to design, develop, promote, market, trade in, deal in softwares for export and domestic market and to provide consultancy services internationally and locally in the areas of electronic and computer engineering, design, develop and test software, export software.

As per the audited Balance Sheet of the Transferor Company No.2 as on 31st March, 2017 the Assets and Liabilities are as follows:-

Liabilities	**Amount Rs.** *(in INR thousands)*	**Assets**	**Amount Rs.** *(in INR thousands)*
Share Capital	20,827	Financial Assets	36,554
Reserves and Surplus	28,913	Income Tax Assets	13,925
Share application money pending allotment	*		
Financial Liabilities	739		
Total	**50,479**	**Total**	**50,479**

A copy of the said Audited Balance Sheet as on 31st March, 2017 of the 1st Petitioner/Transferor Company No.1 is enclosed and marked as **Annexure-E.**

RATIONAL SOFTWARE CORPORATION (INDIA) PRIVATE LIMITED, 2nd Petitioner/Transferor Company No.3 was incorporated on 24th December, 1993, under the provisions of the Companies Act, 1956 under the name

and style "OBJECT ORIENTED INTERACTIVE SOFTWARE PRIVATE LIMITED" with the Registrar of Companies, Karnataka. Subsequently, the name of the 2nd Petitioner/Transferor Company No.3 was changed to "Rational Software Corporation (India) Private Limited" vide fresh certificate of incorporation dated 5th May, 1997. The 2nd Petitioner/Transferor Company No.3, is engaged in providing IT/ITES services. An up-to-date copy of the Memorandum and Articles of Association of Rational Software Corporation (India) Private Limited, is enclosed and collectively marked as **Annexure-F.**

The Registered Office of 2nd Petitioner/Transferor Company No.3 Rational Software Corporation (India) Private Limited is situated at Office No. 12, Subramanya Arcade, Bannerghatta Road, Bangalore 560 029, Karnataka.

The authorised, issued, subscribed and paid-up share capital of 2nd Petitioner/Transferor Company No.3 as on 31st March, 2017 was as follows:

Authorized Capital	**Amount Rs.**
5,00,000 Equity Shares of Rs. 100/- each	5,00,00,000/-
Issued, Subscribed and Paid-up Capital	**Amount Rs.**
20,000 Equity Shares of Rs. 100/- each fully paid-up	20,00,000/-

There is no change in the authorised, issued, subscribed and paid-up share capital of Rational Software Corporation (India) Private Limited from 31st March, 2017 to the date of filing of this application.

The main objects of 2nd Petitioner/Transferor Company No.3 as set out in its Memorandum of Association are, inter alia, as follows:

i.) To buy, sell, exchange, import, export, manufacture, produce, develop let on hire and install, improve, alter, operate and/or otherwise deal in software systems, parts, accessories, peripherals, apparatus, tools, substances, materials and other mechanical and electronic devices used for processing of data and information;

ii.) To provide management consultancy services, liaison services, management consultancy services on software selections, installation, maintenance and other allied activities for computer systems to users, manufacturer or otherwise required or on turnkey basis, etc.

As per the audited Balance Sheet of the 2nd Petitioner/Transferor Company No.3 as on 31st March, 2017 the Assets and Liabilities are as follows:-

Liabilities	**Amount Rs.** *(in INR thousands)*	**Assets**	**Amount Rs.** *(in INR thousands)*
Share Capital	2,000	Financial Assets	15,357
Reserves and Surplus	83,008	Income Tax Assets	2,06,417
Financial Liabilities	1,36,766		
Total	**2,21,774**	**Total**	**2,21,77**

A copy of the said Audited Balance Sheet as on 31st March, 2017 of the 2nd Petitioner/Transferor Company No.3 is enclosed and marked as **Annexure-G.**

STERLING COMMERCE SOLUTIONS INDIA PRIVATE LIMITED, 3rd Petitioner/Transferee Company was incorporated on 10th November, 2000, under the provisions of the Companies Act, 1956 under the name and style "YANTRA SOLUTIONS PRIVATE LIMITED" with the Registrar of Companies, Karnataka. Subsequently, the name of the 3rd Petitioner/Transferee Company was changed to "Sterling Commerce Solutions India Private Limited" vide fresh certificate of incorporation dated 17th May, 2006. The 3rd Petitioner/Transferee Company, is engaged in the business of providing IT/ITES services. An up-to-date copy of the Memorandum and Articles of Association of Sterling Commerce Solutions Private Limited, is enclosed and collectively marked as **Annexure-H.**

The Registered Office of 3rd Petitioner/Transferee Company, Sterling Commerce Solutions Private Limited is situated at IBC, Knowledge Park, 2nd & 3rd Floor, Tower D, Bannerghatta Road, Bangalore 560 029, Karnataka.

The authorised, issued, subscribed and paid-up share capital of 3rd Petitioner/Transferee Company as on 31st March, 2017 was as follows:

Authorized Capital	**Amount Rs.**
2,05,55,000 Equity Shares of Rs. 10/- each	20,55,50,000/-
Issued, Subscribed and Paid-up Capital	**Amount Rs.**
14,85,000 Equity Shares of Rs. 10/- each fully paid-up	1,48,50,000/-

There is no change in the authorised, issued, subscribed and paid-up share capital of 3rd Petitioner/Transferee Company as on 31st March, 2017 from 31st March, 2017 to the date of filing of this application.

The main objects of 3rd Petitioner/Transferee Company as set out in its Memorandum of Association are, inter alia, as follows:

i.) To plan, design, develop, improve, market, distribute, sell, license, lease, install, alter, import, export or otherwise deal in and with all kinds of software, proprietary software, software description including but not limited to software applications and software for internet and web services, entertainment, web designing, on-line services, search engines, portals, servers and all such other activities and services related to internet and the web;

ii.) To plan, design, develop, improve, market, distribute, sell, license, lease, install, alter, import, export or otherwise deal in and with all kind of computers, micro-processor based systems, mini and micro-computer based products, main frame and super computers, electronic and mechanical computers, computer peripherals, equipments and terminals including intelligent terminals, speech and image recognition/processing equipments and to provide

software solutions and programs of all kinds and description, computer technology, systems integration, information processing and networks for all types of users whether directly or indirectly and including but not limited to industrial, commercial, medical, financial, personal and all types of office and factory automation equipments, etc.

As per the audited Balance Sheet of the 3rd Petitioner/Transferee Company as on 31st March, 2017 the Assets and Liabilities are as follows:-

Liabilities	**Amount Rs.** *(in INR thousands)*	**Assets**	**Amount Rs.** *(in INR thousands)*
Share Capital	14,850	Investment in Subsidiaries	1,21,637
Share capital pending allotment	3,724	Income Tax Assets	1,43,477
Reserves and Surplus	13,07,085	Deferred Tax Assets (Net)	6,214
Financial Liabilities	1,912		
Total	**13,27,571**	**Total**	**13,27,571**

A copy of the said Audited Balance Sheet as on 31st March, 2017 of the 3rd Petitioner/Transferee Company is enclosed and marked as **Annexure-J.**

The Board of Directors of the 1st Petitioner/Transferor Company No.1, 2nd Petitioner/Transferor Company No.3 and Emptoris Technologies India Private Limited have approved and adopted the Scheme of Amalgamation of Curam Software International Private Limited, Emptoris Technologies India Private Limited and Rational Software Corporation (India) Private Limited (Transferor Companies) with Sterling Commerce Solutions India Private Limited, at its meeting held on 6th March, 2017, 27th February, 2017 and 3rd March, 2017 respectively. Further, the Board of Directors of the Third Petitioner had approved and adopted the above Scheme of Amalgamation on 24th February, 2017. The extract of the Board Resolution of the Petitioners No.1, 2 and 3 are enclosed and marked as **Annexure-K, L and M** respectively.

It is averred that no investigation proceedings are pending against the 1st Petitioner Company, 2nd Petitioner Company and 3rd Petitioner Company respectively under Sections 235 to 251 or any other provisions of the Companies Act, 1956 or Sections 206 to 229 of the Companies Act, 2013.

Upon the amalgamation of the Transferor Companies with the Transferee Company in terms of this Scheme, the Transferee Company shall, without any application or deed, issue and allot equity shares, credited as fully paid up, to the extent indicated below, to the members of the Transferor Companies holding fully paid-up equity shares in the Transferor Companies and whose names appear in the Register of Members of the Transferor Companies, to the extent the shares are not held by the Transferee Company, on the Effective Date or to such of their respective heirs, executors, administrators or other legal representatives or other successors in title as may be recognised by the Board of Directors of the Transferor Companies in the following proportion viz.:

"46 (Forty Six) fully paid up equity shares of INR 10 each of the Transferee Company shall be issued and allotted for every 100 (One Hundred) equity shares of INR 10 each held in Curam India ("New Equity Shares")".

"26 (Twenty Six) fully paid up equity shares of INR 10 each of the Transferee Company shall be issued and allotted for every 100 (One Hundred) equity shares of INR 100 each held in Emptoris India ("New Equity Shares")".

"470 (Four Hundred and Seventy) fully paid up equity shares of INR 10 each of the Transferee Company shall be issued and allotted for every 100 (One Hundred) equity shares of INR 100 each held in Rational India ("New Equity Shares")".

A Copy of the valuation report is enclosed and marked as **Annexure-N.**

It is further averred that to the extent any shares held by the Transferee Company in Transferor Company/ies as on Effective Date shall stand cancelled or shall be deemed to have been cancelled without any further act or deed.

It is also averred that the Scheme also does not affect the rights and interest of the Creditors of the Transferee Company. The Scheme of Amalgamation is a

contract between the Companies which will not affect the Creditors of the Transferee Company. Transferee Company has an excess of assets over liabilities. Upon the Scheme becoming effective, the creditors of the Transferee Company will thus have the advantage of the positive net worth of the 1st Petitioner Company, 2nd Petitioner Company and Emptoris Technologies India Private Limited respectively.

It is also averred that 1st, 2nd and 3rd Petitioner Companies had jointly filed Company Application No. CAA 75/BB/2017 before this Hon'ble Tribunal for dispensation of the meetings of the Shareholders and Creditors for approving the Scheme of Amalgamation and that this Tribunal, by its order dated 9th October, 2017 allowed the Company Application and dispensed with the meetings of the Shareholders and Creditors of 1st, 2nd and 3rd Petitioner Companies. Copy of the order dated 9th October, 2017 passed by this Tribunal in Company Application No. CAA 75/BB/2017 is enclosed and marked as **Annexure-P.**

The Petitioner Companies have averred that the following benefits sought to be achieved by the Amalgamation:

i) Greater integration and greater financial strength and flexibility for the amalgamated entity, which would result in maximizing overall shareholder value, and will improve the competitive position of the combined entity;

ii) Greater efficiency in cash management of the amalgamated entity and unfettered access to cash flow generated by the combined business which can be deployed more efficiently to fund organic and inorganic growth opportunities, to maximize shareholder value;

iii) Cost savings are expected to flow from more focused operational efforts, rationalization, standardization and simplification of business processes, productivity improvements, improved procurement, usage of common resource pool like human resource, administration, finance, accounts, legal, technology and other related

functions, leading to elimination of duplication and rationalization of administrative expenses.

The Counsel for the Petitioner Companies has filed **Memo dated 26th October, 2017** seeking directions to issue notice(s) to Regional Director, South Eastern Region; Registrar of Companies, Karnataka; Concerned Income Tax Officer (with Assessment details of the respective Petitioner Companies) and to issue notice by way of paper publication in "Financial Express" English Daily Bangalore Edition and "Udayavani" Kannada Daily Bangalore Edition.

This Tribunal vide Order dated 2nd November, 2017 directed the Petitioner Companies to issue Notice to Regional Director, South-East Region, Ministry of Corporate Affairs, Hyderabad; Registrar of Companies, Karnataka; Official Liquidator and Concerned Income Tax Officer and also to have an advertisement of Notice of Petition be carried out in the **'Financial Express'**, an English daily Newspaper and **'UdayaVani'**, a Kannada daily Newspaper and stating the next date of hearing as 13th December, 2017.

In pursuant to the same the Counsel for the Petitioner Companies reported that they have already filed the compliance report vide affidavit dated **30th November, 2017** of the respective Authorised Signatories of the Petitioner Companies for carrying out the Advertisement of the Company Petition and issuance of notices to the above said Authorities. The Copies of Paper Publication are shown as **Annexure A1 & A2** and copies of notice(s) to the above said authorities are shown as **Annexure B, C, D, E, F & G.**

The Regional Director, South East Region, Ministry of Corporate Affairs, Hyderabad, has filed an affidavit dated 16th January, 2018 and has made the following observations:

"To provide certain information and documents for examination of the petitions and for making appropriate representations thereon. However, the Petitioner Company has not furnished the requisite information and documents to the Directorate till 12.12.2017 and that in view of this,

Directorate is unable to provide its conclusive representations/comments on the Scheme."

The Regional Director, South East Region, Ministry of Corporate Affairs, Hyderabad, has filed an affidavit dated 1st February, 2018 and has made the following observations:

a) *M/s. Curam Software International Pvt Ltd (Transferor Company No.1), M/s. Emptoris Technologies India Pvt Ltd (Transferor Company No.2) and M/s. Rational Software Corporation (India) Pvt Ltd (Transferor Company No.3) are proposed to be amalgamated with M/s. Sterling Commerce Solutions India Pvt Ltd (Transferee Company. Transferor (1), Transferor (3) and Transferee Companies are registered in the State of Karnataka while Transferor (2) is registered with ROC, Pune. The proposed Scheme has been examined and the Directorate has no objection to the same.*
b) *Transferee Company has not filed Balance Sheet and Financial Statements for the year 2016-17. Hence, the Transferee Company may be directed to file the Balance Sheet and Financial Statements before the petition is allowed.*

The Counsel for the Petitioner Companies has filed **compliance Memo dated 23rd February, 2018 against the above two affidavits dated 16.01.2018 and 01.02.2018 on RD's observations.**

The Registrar of Companies, Karnataka, Bangalore vide his letter bearing No. ROCB/Legal/CP No. CAA/66&75BB/2017 dated 12th December, 2017 has submitted his report and made the observations:

a) There are no prosecutions, complaints, technical scrutiny/inspection pending in this office on the Petitioner Companies;
b) Transferee Company has filed Annual Returns for the year 2016-17 but financial statements have not been filed for same period;
c) The petition of the Company may be decided on merits.

Since, Registrar of Companies has not raised any other comments/observations with respect to the scheme of Amalgamation of the Petitioner Companies. Therefore, it can be presumed that the Registrar of Companies has no objection.

In response to this Tribunal's order dated 02.11.2017, we received a letter from Income Tax Department vide their letter No. Merger/DCIT-2(1)(1)/2017-18 dated 28.11.2017 stating that tax demands amounting to Rs. 1,99,48,660/- are outstanding in the case of M/s. Curam Software International Pvt Ltd. Clause 9 of Scheme of Amalgamation provides that all the liabilities of the Transferor Companies become the liability of the Transferee Company. The Transferee Company has to pay the said tax liability of the Transferor Companies.

The Counsel for the Petitioner Companies filed an Affidavit of the Director of the 3rd Petitioner Company/Transferee Company dated 09.04.2018 to the effect that 3rd Petitioner Company/Transferee Company undertakes to pay tax liability of 1st Petitioner Company/ Transferor Company No.1 i.e., Curam Software International Private Limited.

On the prayer made by the Official Liquidator in OLR No.173/2017 in CP (CAA)66/BB/2017, vide Order dated 13.12.2017 of this Tribunal, the Official Liquidator appointed M/s Rama Mohan Gupta, Chartered Accountant to scrutinize the Books of Accounts and records of the Petitioner/Transferor Companies.

The said Chartered Accountant filed his Report and pursuant to the same, the Official Liquidator has filed a Report in OLR No.173/2017 in CP (CAA)66/BB/2017, **dated 28.02.2018** stating that M/s Rama Mohan Gupta, Chartered Accountant has submitted Report dated 19.02.2018 and has concluded in his Report as under:

a) The Companies have maintained books of accounts and statutory registers and papers up to date;
b) The Companies have filed all the necessary statutory returns with various authorities;
c) The Companies have been regular in holding applicable meetings of all classes of the Directors as required under the law.

On scrutiny of the books and papers maintained and according to the information and explanations obtained from the Companies, we confirm that:

a) The Companies have maintained proper books and papers;
b) That the affairs of the Companies have not been conducted in a manner prejudicial to the interests of the members of public interest as per Companies Act, 2013.

Copies of Reports of M/s Rama Mohan Gupta, Chartered Accountants, dated 19.02.2018 are enclosed herewith and marked as **Annexure A & B** respectively.

The Counsel for the Petitioner Companies has also filed the copy of Accounting Treatment Certificate of the Chartered Accountant **dated 16.10.2017** stating that the Accounting Treatment contained in the Scheme of Amalgamation is in conformity with the Applicable Accounting Standards under Section 133 of the Companies Act, 2013. The Copy of the said Accounting Treatment Certificate of the Chartered Accountant is enclosed and marked as **Annexure-Q.**

After hearing the Counsel for the Petitioner Companies and considering the material on record, the Scheme appears to be fair, reasonable and is not detrimental against the Members or Creditors or contrary to public policy,

THIS TRIBUNAL DO FURTHER ORDER

While Approving the Scheme, we make clear that this order should not be construed as an order in any way granting exemption from payment of Stamp Duty, taxes or any other charges, if any, and payment in accordance with law or in respect to any permission/compliance with any other requirement which may be specially required under any law.

The Scheme of Amalgamation of **CURAM SOFTWARE INTERNATIONAL PRIVATE LIMITED** (1st Petitioner/Transferor Company No.1) and **RATIONAL SOFTWARE CORPORATION (INDIA) PRIVATE LIMITED** (2nd

Petitioner/Transferor Company No.3) are proposed to be merged with **STERLING COMMERCE SOLUTIONS INDIA PRIVATE LIMITED** (3rd Petitioner/Transferee Company) is sanctioned.

The Whole of the property, rights and powers of the Transferor Companies No.1 & No.3 and be transferred without further act or deed to the Transferee Company and accordingly the same shall pursuant to section 232 of the Companies Act, 2013, be transferred to and vest in the Transferee Company for all the state and interest of the Transferor Companies No.1 & No.3 and therein but subject nevertheless to all the charges now affecting the same; and

All the liabilities including taxes and charges, if any, and duties of the Transferor Companies No.1 & No.3 be transferred without further act or deed to the Transferee Company and accordingly the same shall pursuant to section 232 of the Companies Act, 2013, be transferred to and become the liabilities and duties of the Transferee Company; and

The tax implications, if any, arising out of the scheme is subject to final decision of Concerned Tax Authorities and the decision of the Concerned Tax Authorities shall be binding.

All the proceedings now pending by or against the Transferor Companies No.1 & No.3 be continued by or against the Transferee Company, if any; and

The Petitioner Companies shall within thirty days of the date of the receipt of this Order cause a certified copy of this order along with a copy of Scheme of Amalgamation to be delivered to the concerned Registrar of Companies for registration in accordance with Rule 25 (7) of Companies (Compromises, Arrangements & Amalgamations) Rules, 2016.

The Scheme shall be effective from the appointed date as mentioned in the Scheme of Amalgamation i.e. 1st April, 2017.

The Transferor Companies No.1 & No.3 or their respective authorised signatories are directed that after the completion of the process of Amalgamation to handover the possession of the Books of Accounts and other relevant documents of the Transferor Companies No.1 & No.3 to the Transferee Company for the purpose of section 239 of the Companies Act, 2013.

Any person shall be at the liberty to apply the Tribunal in the above matter for any directions that may be necessary.

(ASHOK KUMAR MISHRA)
MEMBER, TECHNICAL

(RATAKONDA MURALI)
MEMBER, JUDICIAL

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NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH
COURT NO.1

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, BENGALURU BENCH, BENGALURU, HELD ON 10.04.2018.

PRESENT: 1. Hon'ble Member(J) **Shri Ratakonda Murali**
2.Hon'ble Member (T) **Dr. Ashok Kumar Mishra**

CP/CA No	Purpose	Section	Name of Petitioner	Petitioner Advocate	Name of Respondent	Respondent Advocate
CP(CAA) No.66/BB/2017	For orders	230/232	Curam Software International Pvt. Ltd. & 2 Others	SPJ Legal		

SL. NO.	NAME (IN CAPITAL) & PHONE NUMBER	REPRESENTATION TO WHOM	SIGNATURE
1.	SATISH P. JOHN	SPJ Legal Advocate for Petitioner	

ORDER

Order will be passed vide separate Order.

MEMBER**(T)** **MEMBER(J)**